

Court No. - 29

Case :- APPLICATION U/S 528 BNSS No. - 428 of 2025

Applicant :- Executive Engineer Urban Distribution Division
Munshi Puliya Lko.

Opposite Party :- State Of U.P. Thru. Station House Officer
Police Station Indira Nagar Lko. And Another

Counsel for Applicant :- Manish Jauhari

Counsel for Opposite Party :- G.A.

Hon'ble Shree Prakash Singh,J.

Heard Mr. Manish Jauhari, learned counsel for the applicant,
learned A.G.A. for the State and the material placed on record.

Instant application under Section 482 Cr.P.C./ 528 B.N.S.S. has
been filed for quashing the orders dated 19.02.2025 and
27.03.2025 passed by learned Additional District Judge-4/
Special Judge Essential Commodity Act, Lucknow as well as
entire proceedings arising out of Criminal Misc. Case No.761
of 2025 "*Sirmati versus Executive Engineer*" pending before
learned Additional District Judge-4/ Special Judge Essential
Commodity Act, Lucknow.

It is contented by learned counsel for the applicant that on
19.02.2025 the opposite party no.2 directly preferred an
application in the court of Additional District Judge-4/ Special
Judge Essential Commodity Act, Lucknow with the prayer that
the opposite parties are being aggrieved from the installation of
transformer in front of her plot and due to which she is unable
to carry out constructions and, therefore, the same may be
replace to some other place and in case of no action on such
application, she approached the court of Additional District
Judge by moving the application on 18/19.02.2025. He submits
that the learned trial court on such application treated it as a
miscellaneous application and passed an order on the
application itself which is as follows:-

"Heard.

Register as a Miscellaneous Case.

Issue notice to the Executive Engineer of the concerned area.

Put up record on date 27.03.2025 for hearing."

He also added that on 27.03.2025, Executive Engineer
Munshipulia, Lucknow appeared before the trial court and
submitted that there is a provision under paragraph 4.5 of the

U.P. Electricity Supply Code, 2005, whereby the aggrieved can move application in consonance with the provisions but the trial court unlawfully fixing the liability of the Executive Engineer directed with certain observations that the Executive Engineer shall submit his explanation within 15 days and the date was fixed on 15.04.2025.

He argued that the orders passed by the learned trial court on the application dated 18/19.02.2025 filed by the opposite party no.2 and further the order dated 27.03.2025 are against the provisions of law. He has also drawn attention towards Section 3 of the Essential Commodities Act, 1955 (hereinafter referred to as "Act, 1955"). Section 3 of the Act, 1955 reads as under:-

"3. Powers to control production, supply, distribution, etc., of essential commodities.—

(1) If the Central Government is of opinion that it is necessary or expedient so to do for maintaining or increasing supplies of any essential commodity or for securing their equitable distribution and availability at fair prices, or for securing any essential commodity for the defence of India or the efficient conduct of military operations, it may, by order, provide for regulating or prohibiting the production, supply and distribution thereof and trade and commerce therein.

(1A) Notwithstanding anything contained in sub-section (1),—

(a) the supply of such foodstuffs, including cereals, pulses, potato, onions, edible oilseeds and oils, as the Central Government may, by notification in the Official Gazette, specify, may be regulated only under extraordinary circumstances which may include war, famine, extraordinary price rise and natural calamity of grave nature;

(b) any action on imposing stock limit shall be based on price rise and an order for regulating stock limit of any agricultural produce may be issued under this Act only if there is—

(i) hundred per cent. increase in the retail price of horticultural produce; or

(ii) fifty per cent. increase in the retail price of non-perishable agricultural foodstuffs, over the price prevailing immediately preceding twelve months, or average retail price of last five years, whichever is lower:

Provided that such order for regulating stock limit shall not apply to a processor or value chain participant of any agricultural produce, if the stock limit of such person does not exceed the overall ceiling of installed capacity of processing, or the demand for export in case of an exporter:

Provided further that nothing contained in this sub-section shall apply to any order, relating to the Public Distribution System or the Targeted Public Distribution System, made by the Government under this Act or under any other law for the time being in force.

Explanation.—The expression "value chain participant", in relation to any agricultural product, means and includes a set of participants, from production of any agricultural produce in the field to final consumption, involving processing, packaging, storage, transport and distribution, where at each stage value is added to the product.

(2) Without prejudice to the generality of the powers conferred by subsection (1), an order made thereunder may provide-

(a) for regulating by licences, permits or otherwise the production or manufacture of any essential commodity;

(b) for bringing under cultivation any waste or arable land, whether appurtenant to a building or not, for the growing thereon of food-crops generally or of specified food-crops, and for otherwise maintaining or increasing the cultivation of food-crops generally, or of specified food-crops.

(c) for controlling the price at which essential commodity may be bought or sold;

(d)for regulating by licences, permits or otherwise the storage, transport, distribution, disposal, acquisition use or consumption of, any essential commodity;

(e) for prohibiting the withholding from sale of any essential commodity ordinarily kept for sale;

(f) for requiring any person holding in stock, or engaged in the production, or in the business of buying or selling, of any essential commodity,-

(a) to sell the whole or a specified part of the quantity held in stock or produced or received by him or,

(b) in the case of any such commodity which is likely to be produced or received by him, to sell the whole or a specified part of such commodity when produced or received by him,

to the Central Government or a State Government or to an officer or agent of such Government or to a Corporation owned or controlled by such Government or to such other person or class of persons and in such circumstances as may be specified in the order.

Explanation 1- An order made under this clause in relation to food-grains, edible oilseeds or edible oils, may, having regard to the estimated production, in the concerned area, of such food grains, edible oilseeds and edible oils, fix the quantity to be sold by the producers in such area and may also fix, or provide for the fixation of, such quantity on a graded basis, having regard to the aggregate of the area held by, or under the cultivation of, the producers.

Explanation 2- For the purposes of this clause, "production" with its grammatical variations and cognate expressions includes manufacture of edible oils and sugar;

(g) for regulating or prohibiting any class of commercial or financial transactions relating to foodstuffs which, in the opinion of the authority making the order, are, or, if unregulated, are likely to be, detrimental to the public interest;

(h) for collecting any information or statistics with a view to regulating or prohibiting any of the aforesaid matters;

(i) for requiring persons engaged in the production, supply or distribution of or trade and commerce in, any essential commodity to maintain and produce for inspection such books, accounts and records relating to their business and to furnish such information relating thereto, as may be specified in the order;

(ii) for the grant or issue of licences, permits or other documents, the charging of fees therefore, the deposit of such sum, if any, as may be specified in the order as security for the due performance of the conditions of any such licence, permit or other document, the forfeiture of the sum so deposited or any part thereof for contravention of any such conditions, and the adjudication of such forfeiture by such authority as may be specified in the order;

(j) for any incidental and supplementary matters, including, in particular, the entry, search or examination of premises, aircraft, vessels, vehicles or other conveyances and animals, and the seizure by a person authorised to make such entry, search or examination.]

(i) of any articles in respect of which such person has reason to believe that a contravention of the order has been, is being, or is about to be committed and any packages, coverings or receptacles in which such articles are found;

(ii) of any aircraft, vessel, vehicle or other conveyance or animal used in carrying such article, if such person has reason to believe that such aircraft, vessel, vehicle or other conveyance or animal is liable to be forfeited under the provisions of this Act:

(iii) of any books of accounts and documents which in the opinion of such person, may be useful for, or relevant to, any proceeding under this Act and the person from whose custody such books of accounts or documents are seized shall be entitled to make copies thereof or to take extracts therefrom in the presence of an officer having the custody of such books of accounts or documents.]

(3) Where any person sells any essential commodity in compliance with an order made with reference to clause (f) of sub-section (2), there shall be paid to him the price therefore as hereinafter provided:

(a) where the price can, consistently with the controlled price, if any, fixed under this section, be agreed upon, the agreed price;

(b) where no such agreement can be reached, the price calculated with reference to the controlled price, if any;

(c) where neither clause (a) nor clause (b) applies, the price calculated at the market rate prevailing in the locality at the date of sale.

(3A)(i) If the Central Government is of opinion that it is necessary so to do for controlling the rise in prices or preventing the hoarding, of any food-stuff in any locality, it may, by notification in the Official Gazette, direct that notwithstanding anything contained in sub-section (3), the price at which the food-stuff shall be sold in the locality in compliance with an order made with reference to clause (f) of subsection (2) shall be regulated in accordance with the provisions of this sub-section.

(ii) Any notification issued under this sub-section shall remain in force for such period not exceeding three months as may be specified in the notification.

(iii) Where, after the issue of a notification under this sub-section, any person sells foodstuff of the kind specified therein and in the locality so specified, in compliance with an order made with reference to clause (f) of sub-section (20), there shall be paid to the seller as the price therefor-

(a) where the price can, consistently with the controlled price of the foodstuff, if any, fixed under this section, be agreed upon, the agreed price:

(b) where no such agreement can be reached, the price calculated with reference to the controlled price, if any;

(c) where neither clause (a) nor clause (b) applies, the price calculated with reference to average market rate prevailing in the locality during the period of three months immediately preceding the date of the notification.

(iv) For the purposes of sub-clause (c) of clause (iii), the average market rate prevailing in the locality shall be determined by an officer authorised by the Central Government in this behalf, with reference to the prevailing market rates for which published figures are available in respect of that locality or of a neighbouring locality; and the average market rate so determined shall be final and shall not be called in question in any court.]

(3B) Where any person is required, by an order made with reference to clause (f) of sub-section (2), to sell to the Central Government or a State Government or to an officer or agent of such Government or to a Corporation owned or controlled by such Government, any grade or variety of food grains, edible oilseeds or edible oils in relation to which no notification has been issued under sub-section (3A), or such notification having been issued, has ceased to be in force, there shall be paid to the person concerned, notwithstanding anything to the contrary contained in subsection (3), an amount equal to the procurement price of such food grains, edible oilseeds or edible oils, as the case may be, specified by the State Government, with the previous approval of the Central Government having regard to -

(a) the controlled price, if any, fixed under this section or by or under any other law for the time being in force for such grade or variety of food grains, edible oilseeds or edible oils;

(b) the general crop prospects;

(c) the need for making such grade or variety of food grains, edible oilseeds or edible oils available at reasonable prices to the consumers,

particularly the vulnerable sections of the consumers; and

(d) the recommendations, if any, of the Agricultural Prices Commission with regard to the price of the concerned grade or variety of food grains, edible oilseeds or edible oils.

(3C) Where any producer is required by an order made with reference to clause (f) of sub-section (2) to sell any kind of sugar (whether to the Central Government or to a State Government or to an officer or agent of such Government or to any other person or class of persons) whether a notification was issued under sub-section (3A) or otherwise, then, notwithstanding anything contained in sub-section (3), there shall be paid to that producer only such amount as the Central Government may, by order, determine, having regard to—

(a) the fair and remunerative price, if any, determined by the Central Government as the price of sugarcane to be taken into account under this section;

(b) the manufacturing cost of sugar;

(c) the duty or tax, if any, paid or payable thereon; and

(d) a reasonable return on the capital employed in the business of manufacturing of sugar:

Provided that the Central Government may determine different prices, from time to time, for different areas or factories or varieties of sugar:

Provided further that where any provisional determination of price of levy sugar has been done in respect of sugar produced up to the sugar season 2008-2009, the final determination of price may be undertaken in accordance with the provisions of this sub-section as it stood immediately before the 1st day of October, 2009.

Explanation I.— For the purposes of this sub-section,—(a)"fair and remunerative price" means the price of sugarcane determined by the Central Government under this section;(b)"manufacturing cost of sugar" means the net cost incurred on conversion of sugarcane into sugar including net cost of transportation of sugarcane from the purchase center to the factory gate, to the extent it is borne by the producer;(c)"producer" means a person carrying on the business of manufacturing sugar; (d)"reasonable return on the capital employed" means the return on net fixed assets plus working capital of a producer in relation to manufacturing of sugar including procurement of sugarcane at a fair and remunerative price determined under this section.]

Explanation II.--For the removal of doubts, it is hereby declared that the expressions "fair and remunerative price" referred to in clause (a), "manufacturing cost of sugar" referred to in clause (b) and "reasonable return on the capital employed" referred to in clause (d), of this sub-section do not include the price paid or payable under any order or any enactment of any State Government and any price agreed to between the producer and the grower or a sugarcane growers' co-operative society.

(3D) The Central Government may direct that no producer, importer or

exporter shall sell or otherwise dispose of or deliver any kind of sugar or remove any kind of sugar from the bonded godowns of the factory in which it is produced, whether such godowns are situated within the premises of the factory or outside or from the warehouses of the importers or exporters, as the case may be except under and in accordance with the direction issued by the Government: Provided that this sub-section shall not affect the pledging of such sugar by any producer or importer in favour of any scheduled bank as defined in clause (e) of section 2 of the Reserve Bank of India Act, 1934 or any corresponding new bank constituted under section 3 of the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (5 of 1970), so, however, that no such bank shall sell the sugar pledged to it except under and in accordance with a direction issued by the Central Government.

(3E) The Central Government may, from time to time, by general or special order, direct any producer or importer or exporter or recognised dealer or any class of producers or recognised dealers, to take action regarding production, maintenance of stocks, storage, sale, grading, packing, marking, weighment, disposal, delivery and distribution of any kind of sugar in the manner specified in the direction.

Explanation.—For the purposes of sub-section (3D) and this sub-section,—

(a) "producer" means a person carrying on the business of manufacturing sugar;

(b) "recognised dealer" means a person carrying on the business of purchasing, selling or distributing sugar;

(c) "sugar" includes plantation white sugar, raw sugar and refined sugar, whether indigenously produced or imported.

(4) If the Central Government is of opinion that it is necessary so to do for maintaining or increasing the production and supply of an essential commodity, it may, by order, authorize any person (hereinafter referred to as an authorized controller) to exercise, with respect to the whole or any part of any such undertaking engaged in the production and supply of the commodity as may be specified in the order such functions of control as may be provided therein and so long as such order is in force with respect to any undertaking or part thereof,—

(a) the authorized controller shall exercise his functions in accordance with any instructions given to him by the Central Government, so, however, that he shall not have any power to give any direction inconsistent with the provisions of any enactment or any instrument determining the functions of the persons in-charge of the management of the undertaking, except in so far as may be specifically provided by the order; and

(b) the undertaking or part shall be carried on in accordance with any directions given by the authorised controller under the provisions of the order, and any person having any functions of management in relation to the undertaking or part shall comply with any such directions.

(5) An order made under this section shall,—

(a) in the case of an order of a general nature or affecting a class of persons, be notified in the Official Gazette; and

(b) in the case of an order directed to a specified individual be served on such individual-

(i) by delivering or tendering it to that individual, or

(ii) if it cannot be so delivered or tendered, by affixing it on the outer door or some other conspicuous part of the premises in which that individual lives, and a written report there of shall be prepared and witnessed by two persons living in the neighbourhood.

(6) Every order made under this section by the Central Government or by any officer or authority of the Central Government shall be laid before both Houses of Parliament, as soon as may be, after it is made."

Referring the aforesaid he submits that the power under Section 3 could be invoked where the Central Government is of the opinion that it is necessary or expedient so to do for maintaining or increasing supplies of any essential commodities or for security their equitable distribution and availability at fair price but the present case is with respect to shifting/ transfer of transformer on another place from the gate of the opposite party no.2 and thus, the provision prescribed under Section 3 do not covers the aforesaid complaint of the opposite party no.2.

He also submitted that so far as the provision of cognizance of offences under the Act, 1955 is concerned, the same is provided under Section 11 of the Act, 1955, which is quoted hereunder:-

"11. Cognizance of offences.— *No Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made by a person who is a public servant as defined in section 21 of the Indian Penal Code (45 of 1860) or any person aggrieved or any recognised consumer association, whether such person is a member of that association or not."*

Referring the aforesaid he submits that the Section 11 prescribes the provision that no court shall take cognizance of any offence punishable under the Act, 1955 except on a report in writing of facts constituting such offence made by a person who is a public servant or a person aggrieved or any recognized consumer association but the opposite party no.2 is neither the public servant nor is person aggrieved or any recognized consumer association under the definition of Section 11 of the Act, 1955 and, therefore, the application itself is not maintainable and thus, subsequently the order passed by learned trial court is also against the law and thus, the same are liable to be set aside.

On the other hand, learned A.G.A. appearing for the State has

opposed the contentions aforesaid but he could not dispute the legal position as is contented by the learned counsel for the applicant.

It is astonishing situation that learned trial court has entertained an application on behest of a private person who is not even covered under the provisions of Section 11 and the subject matter is also not as is envisaged under Section 3 of the Act, 1955.

Matter requires consideration.

Let the notice be issued to the opposite party no.2 returnable at an early date.

Steps within a week.

List/put up this matter in second week of July, 2025.

In the meantime, State as well as opposite party no.2 may file their counter affidavits.

Till the next date of listing, the proceedings of Criminal Misc. Case No.761 of 2025 "*Sirmati versus Executive Engineer, Urban Distribution Division Munshipulia, Lucknow*" shall remain stayed.

Order Date :- 15.5.2025
Mohd. Sharif